

REQUEST FOR SUPPLIER QUALIFICATIONS FOR

**Standing Offer for Professional and Consulting Services
and Certain Goods**

Continuous Onboarding Period

For Invest Nova Scotia

RSO Number: INS2024-25-23



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PART 1 – INVITATION AND SUBMISSION INSTRUCTIONS

1.1 Invitation to Respondents

This Request for Supplier Qualifications, referred to hereafter as a Request for Standing Offer (“RSO”) is an invitation by Invest Nova Scotia to prospective respondents to qualify in accordance with the Evaluation of Responses (Part 2) for eligibility for the purpose of establishing a standing offer list (the “Standing Offer”) for Professional and Consulting Services and Certain Goods as further described in the RSO Particulars (Appendix B) (the “Deliverables”).

On May 6, 2024, an initial offering of this RSO document was issued through Bonfire and posted to the Nova Scotia Procurement Web Portal (#INS2024-25-03). This document provides the opportunity for additional suppliers to respond to this offering per section B.1.2 Onboarding of the original RSO.

Respondents who meet the requirements for this RSO will qualify for inclusion on the Standing Offer to receive potential future invitations to quote on specific statements of work from Invest Nova Scotia. In the event the Standing Offer user requires services or goods from the standing offer list, Statements of Work (SOWs) will be issued to qualified suppliers in accordance with Invest Nova Scotia’s Procurement Policy. Responses to the SOWs will be reviewed and awarded based on the criteria detailed in the subsequent SOWs. Alternatively, Invest Nova Scotia reserves the right to issue subsequent public tender calls to address its requirements.

SOWs will be issued on an as required basis to successful RSO respondents until July 31, 2027. This Standing Offer will not guarantee a minimum volume of work to any successful RSO respondent. Regardless of the date a selected respondent is added to the Standing Offer, the term for issuance of subsequent SOWs will expire on July 31, 2027.

Invest Nova Scotia is Nova Scotia’s business development agency that works to promote economic growth and community economic development in the province by enabling business, innovation, sustainability and entrepreneurship.

Invest Nova Scotia also manages over 14,400 acres of industrial real estate in Nova Scotia to accommodate future commercial/industrial development.

Our real estate assets are diverse in nature and include multi-purpose marine facilities and greenfield marine industrial development sites on the deep waters of the Strait of Canso, as well as readily available industrial zoned building lots.

We work closely with relevant regulatory approval bodies, local government partners and private companies to stimulate private investment resulting in economic growth for Nova Scotia. Go to www.investnovascotia.ca to learn more.

1.2 RSO Contact

For the purposes of this procurement process, the “RSO Contact” shall be:

Jennifer Dunbar, Contracts Specialist

All inquiries are to be made to the RSO Contact through the Bonfire e-tendering website for this opportunity at: <https://investnovascotia.bonfirehub.ca/opportunities/86010>

Respondents and their representatives are not permitted to contact any employees, officers, agents, elected or appointed officials or other representatives of Invest Nova Scotia, other than the RSO Contact

or their designate, concerning matters regarding this RSO. Failure to adhere to this rule may result in the disqualification of the respondent and the rejection of the respondent's response.

1.3 Prequalification Process

Responses will be evaluated in accordance with the evaluation process set out in Part 2 of the RSO. Based on the evaluation of responses, certain respondents will be selected for inclusion on the Standing Offer to receive potential future invitations to quote on specific SOWs from Invest Nova Scotia.

1.4 RSO Timetable

Issue Date of RSO Onboarding Period	November 1, 2024
Deadline for Questions	N/A
Submission Deadline Date/Time	February 15, 2027, at 5:00pm ADT
Rectification Period	7 days
Notification to Respondents	Respondents can typically expect notification of their results within two-three weeks from the date of their submission.

The RSO timetable is tentative only and may be changed by Invest Nova Scotia at any time.

1.5 RSO Onboarding Period for New Respondents

Invest Nova Scotia is initiating this continuous onboarding period for additional respondents of the initial RSO. The same terms and conditions, qualifications, requirements and evaluation processes set out in the initial RSO document will apply to any additional respondents. In the initial RSO, evaluation and selection of respondents did not occur until after the Submission Deadline. In this onboarding RSO, evaluation and selection of respondents will occur continuously from the Issue Date of the RSO Onboarding Period until the onboarding process ends on February 15, 2027.

Regardless of the date a selected respondent is added to the Standing Offer, the term for issuance of subsequent SOWs to successful respondents will expire on July 31, 2027.

There is no guarantee that any minimum volume of work will be reached for selected respondents, as detailed above in section 1.1.

Respondents already added to the Standing Offer under the initial RSO need not reapply to this continuous onboarding process.

1.6 Submission of Responses

1.6.1 Responses to be submitted in Prescribed Format

In electronic format, Respondents should submit their response documentation in the file formats as specified under the "Requested Information" through the Bonfire e-tendering website for this opportunity: <https://investnovascotia.bonfirehub.ca/opportunities/86010> prior to the submission deadline as indicated in section 1.4.

1.6.2 Responses to be submitted on Time

Responses must be submitted to the Bonfire e-tendering website as set out above in section 1.5.1 on or before the Submission Deadline as indicated in section 1.4. Responses submitted after the Submission Deadline will be rejected.

1.6.3 Amendment of Responses Prior to Submission Deadline

Respondents may amend their Responses prior to the Submission Deadline by resubmitting their response to the Bonfire e-tendering website in the format as set out above in section 1.5.1. Any amendments received after the Submission Deadline will not be accepted.

1.6.4 Withdrawal of Responses

Respondents may withdraw their Responses prior to the Submission Deadline through the Bonfire e-tendering website.

[End of Part 1]

PART 2 – EVALUATION OF RESPONSES

2.1 Stages of Evaluation

Invest Nova Scotia will conduct the evaluation of responses in the following two stages:

2.2 Stage I – Mandatory Submission Requirements

Stage I will consist of a review to determine which responses comply with all of the mandatory submission requirements. If a response fails to satisfy all of the mandatory submission requirements, Invest Nova Scotia will issue the Respondent a rectification notice identifying the deficiencies and providing the Respondent an opportunity to rectify the deficiencies. If the Respondent fails to satisfy the mandatory submission requirements within the Rectification Period, its response will be excluded from further consideration. The Rectification Period will begin to run from the date that Invest Nova Scotia issues a rectification notice to the Respondent.

The mandatory submission requirements are as follows:

2.2.1 No Amendment to Forms

Other than inserting information requested on the mandatory submission forms set out in the RSO, a Respondent may not make any changes to any of the forms. Any response containing any such changes, whether on the face of the form or elsewhere in the response, will be disqualified.

2.2.2 Submission Form (Appendix A)

Each response must include a Submission Form (**Appendix A**) completed and signed by an authorized representative of the Respondent. **Respondent must include all pages of Appendix A - Submission Form to be considered compliant.**

2.3 Stage II – Evaluation

Stage II will consist of the following two sub-stages:

2.3.1 Mandatory Technical Requirements

Invest Nova Scotia will review the responses to determine whether the mandatory technical requirements set out in Section B.3 of the RSO Particulars (**Appendix B**) have been met. Questions or queries on the part of Invest Nova Scotia as to whether a response has met the mandatory technical requirements shall be subject to the verification and clarification process set out in Part 3. If the Respondent fails to satisfy the mandatory technical requirements, its response will be excluded from further consideration.

2.3.2 Rated Criteria

Invest Nova Scotia will evaluate each compliant response on the basis of the rated criteria as set out in Section B.4 of the RSO Particulars (**Appendix B**). The following is an overview of the categories and weighting for the rated criteria of the RSO. Respondents must pass all criteria to proceed to the next stage of the evaluation process.

Rated Criteria Category	Weighting
B.4.1 Company Profile	Pass / Fail
B.4.2 Goods/Services Offered	Pass / Fail
B.4.3 Skills and Expertise	Pass / Fail
B.4.4 Demonstrated Experience	Pass / Fail
Total Weighting	Pass / Fail

2.4 Ranking and Selection

Based on the evaluation of the responses in Stage II, Invest Nova Scotia intends to select all Respondents who pass all criteria for inclusion on the Standing Offer. Invest Nova Scotia reserves the right to not select a Respondent if the goods/services offered do not demonstrate a fit with typical procurement requirements for a particular category. Selection for the Standing Offer will not guarantee any minimum volume of work for any Respondent.

[End of Part 2]

PART 3 – TERMS AND CONDITIONS OF THE RSO PROCESS

3.1 General Information and Instructions

3.1.1 Respondents to Follow Instructions

Respondents should structure their responses in accordance with the instructions in this RSO. Where information is requested in this RSO, any response made should reference the applicable section titles of this RSO.

3.1.2 Language

All responses are to be in English, or both English and French. If there is a conflict or inconsistency between the English version and the French version of the response, the English version of the response shall prevail.

3.1.3 No Incorporation by Reference

Unless otherwise requested in the Rated Criteria, the entire content of the Respondent's response should be submitted in a fixed form, and the content of websites or other external documents referred to in the Respondent's response but not attached will not be considered to form part of its response.

3.1.4 References and Past Performance

In the evaluation process, Invest Nova Scotia may include information provided by the Respondent's references and may also consider the Respondent's past performance or conduct on previous contracts with Invest Nova Scotia.

3.1.5 Information in RSO Only an Estimate

Invest Nova Scotia makes no representation, warranty or guarantee as to the accuracy of the information contained in this RSO or issued by way of addenda. Any quantities shown or data contained in this RSO or provided by way of addenda are estimates only and are for the sole purpose of indicating to Respondents the general scale and scope of the Deliverables. It is the Respondent's responsibility to obtain all the information necessary to prepare a response to this RSO.

3.1.6 Respondents to Bear Their Own Costs

The Respondent shall bear all costs associated with or incurred in the preparation and presentation of its response, including, if applicable, costs incurred for interviews or demonstrations.

3.1.7 Response to be retained by Invest Nova Scotia

Invest Nova Scotia will not return the response or any accompanying documentation submitted by a Respondent.

3.1.8 Third Party Assistance with Evaluation

Invest Nova Scotia reserves the right to engage, as necessary, subject matter experts as advisors/consultants to assist with the evaluation of submissions and to provide technical guidance. The assignment by Invest Nova Scotia of any one or more of these advisors/consultants will be at Invest Nova Scotia's sole and absolute discretion. Invest Nova Scotia may use any such advisors/consultants in any way it, in its discretion, considers necessary.

3.1.9 No Guarantee of Volume of Work or Exclusivity of Contract

This RSO process will not result in any commitment by Invest Nova Scotia to purchase any goods or services from any Respondent. Invest Nova Scotia makes no guarantee of the value or volume

of Deliverables that may be required. Any agreement entered into pursuant to an invitational second-stage competitive process will not be an exclusive contract for the provision of the described Deliverables. Invest Nova Scotia may contract with others for goods and services the same as or similar to the Deliverables or may obtain such goods and services internally. Alternatively, Invest Nova Scotia reserves the right to issue subsequent public tender calls to address its requirements.

3.2 Communication after Issuance of RSO

3.2.1 Respondents to Review RSO

Respondents shall promptly examine all of the documents comprising this RSO and may direct questions or seek additional information in writing by email to the RSO Contact. Invest Nova Scotia is not obligated to respond to questions or comments received after the Deadline for Questions has passed. No such communications are to be directed to anyone other than the RSO Contact. Invest Nova Scotia is under no obligation to provide additional information and Invest Nova Scotia shall not be responsible for any information provided by or obtained from any source other than the RSO Contact. It is the responsibility of the Respondent to seek clarification from the RSO Contact on any matter it considers to be unclear. Invest Nova Scotia shall not be responsible for any misunderstanding on the part of the Respondent concerning this RSO or its process.

3.2.2 All New Information to Respondents by Way of Addenda

This RSO may be amended only by addendum in accordance with this section. If Invest Nova Scotia, for any reason, determines that it is necessary to provide additional information relating to this RSO, such information will be communicated by addendum on the Bonfire e-tendering website for this opportunity. Each addendum forms an integral part of this RSO and may contain important information, including significant changes to this RSO. Respondents are responsible for reviewing all addenda issued by Invest Nova Scotia.

3.2.3 Verify, Clarify and Supplement

When evaluating responses, Invest Nova Scotia may request further information from the Respondent or third parties in order to verify, clarify or supplement the information provided in the Respondent's response, including but not limited to clarification with respect to whether a response meets the mandatory technical requirements set out in Section B.3 of the RSO Particulars (**Appendix B**). Invest Nova Scotia may revisit and re-evaluate the Respondent's response or ranking based on any such information.

3.3 Notification and Debriefing

3.3.1 Notification of Top-Ranked Respondents

The top-ranked Respondents selected by Invest Nova Scotia to be included in the prequalified supplier list in accordance with the process set out in the Evaluation of Responses (Part 2) will be notified by Invest Nova Scotia.

3.3.2 Notification to Other Respondents

Once the selected Respondents have been notified, all other Respondents will be notified in writing by Invest Nova Scotia.

3.3.3 Debriefing

Respondents may request a debriefing after notification of the outcome of the procurement process. All requests must be made in writing to the RSO Contact and must be made within sixty (60) days of notification of the outcome of the procurement process. The intent of the debriefing information session is to aid the Respondent in presenting a better response in subsequent

procurement opportunities. Any debriefing provided is not for the purpose of providing an opportunity to challenge the procurement process or its outcome.

3.3.4 Supplier Complaint Procedure

If a Respondent wishes to file a complaint in regard to the RSO process, it must provide notice to the RSO Contact within sixty (60) days of notification of the outcome of the RSO process, and Invest Nova Scotia will respond in accordance with its supplier complaint protocol.

3.4 Conflict of Interest and Prohibited Conduct

3.4.1 Conflict of Interest

Invest Nova Scotia may disqualify a Respondent for any conduct, situation or circumstances determined by Invest Nova Scotia, in its sole and absolute discretion, to constitute a Conflict of Interest. For the purposes of this RSO, "Conflict of Interest" has the meaning ascribed to it in the Submission Form **(Appendix A)**.

3.4.2 Disqualification for Prohibited Conduct

Invest Nova Scotia may disqualify a Respondent or terminate any Agreement subsequently entered into if Invest Nova Scotia, in its sole and absolute discretion, determines that the Respondent has engaged in any conduct prohibited by this RSO.

3.4.3 Prohibited Respondent Communications

The Respondent shall not engage in any communications that could constitute a Conflict of Interest and should take note of the Conflict of Interest declaration set out in the Submission Form **(Appendix A)**.

3.4.4 No Lobbying

A Respondent may not, in relation to this RSO or the evaluation and selection process, engage directly or indirectly in any form of political or other lobbying whatsoever to influence the selection of successful Respondent(s).

3.4.5 Illegal or Unethical Conduct

Respondents shall not engage in any illegal business practices, including activities such as bid-rigging, price-fixing, bribery, fraud, coercion, or collusion. Respondents shall not engage in any unethical conduct, including lobbying (as described above) or other inappropriate communications; offering gifts to any employees, officers, agents, elected or appointed officials or other representatives of Invest Nova Scotia submitting responses containing misrepresentations or other misleading or inaccurate information; or any other conduct that compromises or may be seen to compromise the competitive process.

3.4.6 Rejection of Bids

Invest Nova Scotia may reject a bid based on past performance or based on inappropriate conduct, including but not limited to the following:

- (a) illegal or unethical conduct as described above;
- (b) the refusal of the Respondent to honour its submitted pricing or other commitments;
- (c) any conduct, situation or circumstance determined by Invest Nova Scotia, in its sole and absolute discretion, to have constituted an undisclosed Conflict of Interest; or
- (d) Invest Nova Scotia's past experience with the Respondent within the last 18 months for similar or related services.

3.5 Confidential Information

3.5.1 Confidential Information of Invest Nova Scotia

All information provided by or obtained from Invest Nova Scotia in any form in connection with this RSO either before or after the issuance of this RSO:

- (a) is the sole property of Invest Nova Scotia and must be treated as confidential;
- (b) is not to be used for any purpose other than replying to this RSO and the performance of any subsequent contract for the Deliverables; and
- (c) must not be disclosed without prior written authorization from the RSO Contact.

3.5.2 Confidential Information of Respondent

A Respondent should identify any information in its response or any accompanying documentation supplied in confidence for which confidentiality is to be maintained by Invest Nova Scotia. The confidentiality of such information will be maintained by Invest Nova Scotia, except as otherwise required by law or by order of a court or tribunal. Respondents are advised that their responses will, as necessary, be disclosed on a confidential basis, to Invest Nova Scotia's advisors retained to advise or assist with the RSO process, including the evaluation of responses.

3.6 Procurement Process Non-binding

3.6.1 No Contract A and No Claims

This procurement process is not intended to create and shall not create a formal legally binding bidding process and shall instead be governed by the law applicable to direct commercial negotiations. For greater certainty and without limitation, this RSO shall not give rise to any Contract A-based tendering law duties or any other legal obligations arising out of any process contract or collateral contract.

3.6.2 No Legal Relationship or Obligation

No legal relationship or obligation regarding the procurement of any good or service shall be created between the Respondent and Invest Nova Scotia by this RSO process.

3.6.3 Cancellation

Invest Nova Scotia may cancel the RSO process without liability at any time.

3.7 Governing Law and Interpretation

The Terms and Conditions of RSO Process (Part 3):

- (a) are intended to be interpreted broadly and separately (with no particular provision intended to limit the scope of any other provision);
- (b) are non-exhaustive and shall not be construed as intending to limit the pre-existing rights of the parties to engage in pre-contractual discussions in accordance with the common law governing direct commercial negotiations; and
- (c) are to be governed by and construed in accordance with the laws of the province of Nova Scotia and the federal laws of Canada applicable therein.

[End of Part 3]

APPENDIX A – SUBMISSION FORM

A.1 Respondent Information

Please fill out the following form, naming one person to be the contact for this RSO response and for any clarifications or communication that might be necessary.	
Full Legal Name of Respondent: <i>[Organization's legal name]</i>	
Any Other Relevant Name under which Respondent Carries on Business:	
Street Address:	
City, Province/State:	
Postal Code / Zip Code:	
Phone Number:	
Company Website (if any):	
Respondent Contact Name and Title:	
Respondent Contact Phone:	
Respondent Contact Email:	
Nova Scotia Registry of Joint Stock Number (Leave blank if NOT applicable):	
HST / GST Registration Number (Leave blank if NOT applicable):	
SIN # (only required if you do not have an HST/GST or NSRJT number):	

Select the Service Function Category in which you are applying:

People Services, Professional Development, Training & Facilitation

FDI Lead Generation, B2B Matchmaking, In-Market Support, & Business Advisory Services

Marketing & Communication Services

Information Technology Goods & Services

Research & Analysis

Professional Engineering, General Contracting, & Maintenance Services

Legal & Other Professional Services

A.2 Acknowledgment of Non-Binding Procurement Process

The Respondent acknowledges that this RSO process will be governed by the terms and conditions of the RSO and that, among other things, such terms and conditions confirm that this procurement process does

not constitute a formal, legally binding bidding process (and for greater certainty, does not give rise to a Contract A bidding process contract) and that no legal relationship or obligation regarding the procurement of any good or service shall be created between Invest Nova Scotia and the Respondent unless and until Invest Nova Scotia and the Respondent execute a written agreement for the Deliverables pursuant to a subsequent invitational second-stage procurement process.

A.3 Ability to Provide Deliverables

The Respondent has carefully examined the RSO documents and has a clear and comprehensive knowledge of the Deliverables required. The Respondent represents and warrants its ability to provide the Deliverables in accordance with the requirements of the RSO.

A.4 Mandatory Submission Requirements

The Respondent encloses as part of the response the mandatory submission requirements set out below:

FORM	INITIAL BELOW TO CONFIRM ENCLOSURE
Appendix A - Submission Form	

A.5 Addenda

The Respondent is deemed to have read and taken into account all addenda issued by Invest Nova Scotia.

A.6 No Prohibited Conduct

The Respondent declares that it has not engaged in any conduct prohibited by this RSO.

A.7 Conflict of Interest

For the purposes of this section, the term “Conflict of Interest” includes, but is not limited to, any situation or circumstance where:

- (a) in relation to the RSO process, the Respondent has an unfair advantage or engages in conduct, directly or indirectly, that may give it an unfair advantage, including but not limited to (i) having, or having access to, confidential information of Invest Nova Scotia in the preparation of its response that is not available to other Respondents; (ii) communicating with any person with a view to influencing preferred treatment in the RSO process (including but not limited to the lobbying of decision makers involved in the RSO process); or (iii) engaging in conduct that compromises, or could be seen to compromise, the integrity of the open and competitive RSO process or render that process non-competitive or unfair; or
- (b) in relation to the performance of its contractual obligations under a contract for the Deliverables, the Respondent’s other commitments, relationships or financial interests (i) could, or could be seen to, exercise an improper influence over the objective, unbiased and impartial exercise of its independent judgement, or (ii) could, or could be seen to, compromise, impair or be incompatible with the effective performance of its contractual obligations.

Respondents should disclose the names and all pertinent details of all individuals (employees, advisors, or individuals acting in any other capacity) who (a) participated in the preparation of the response; **AND** (b) were employees of Invest Nova Scotia within twelve (12) months prior to the Submission Deadline.

If the box below is left blank, the Respondent will be deemed to declare that (a) there was no Conflict of Interest in preparing its response; and (b) there is no foreseeable Conflict of Interest in performing the contractual obligations contemplated in the RSO.

Otherwise, if the statement below applies, check the box YES.

☐ YES - The Respondent declares that there is an actual or potential Conflict of Interest relating to the preparation of its response, and/or the Respondent foresees an actual or potential Conflict of Interest in performing the contractual obligations contemplated in the RSO.

If the Respondent declares an actual or potential Conflict of Interest by marking the box YES, the Respondent must set out below details of the actual or potential Conflict of Interest:

A.8 Disclosure of Information

The Respondent hereby agrees that any information provided in this response, even if it is identified as being supplied in confidence, may be disclosed where required by law or by order of a court or tribunal. The Respondent hereby consents to the disclosure, on a confidential basis, of this response by Invest Nova Scotia to the advisors retained by Invest Nova Scotia to advise or assist with the RSO process, including with respect to the evaluation of this response.

You agree you are signing this document electronically and agree that your electronic signature is the legal equivalent of your manual signature and that no further certification or third-party verification of your electronic signature is required in order to be legally binding.

Name of Respondent Representative

Title of Respondent Representative

Name of Organization

Date

I have the authority to bind the Respondent.

APPENDIX B – RSO PARTICULARS

B.1 THE DELIVERABLES

From time to time, Invest Nova Scotia requires professional and consulting support services which may include any work and/or consultation associated with the planning, development and/or execution of an engagement which requires the use of professionals, and certain goods for service functions as outlined below in section B.1.1.

The intent of the Standing Offer is to provide Invest Nova Scotia with an effective means to procure the required skills or goods from the marketplace to address these short-term support needs from August 1, 2024, up to and including July 31, 2027. During the term of the Standing Offer, there is an opportunity to add further Respondents to the Standing Offer as outlined below in section B.1.2.

Respondents may select one or more service categories from the list in section B.1.1 and will be evaluated separately for each category selected. Responses should be tailored to clearly identify core competencies and demonstrated skills/expertise for service functions within a category. Selection for the Standing Offer in one category does not necessarily mean selection in all requested categories. Respondents will be notified which service categories they have been accepted for on the Standing Offer. Respondents selected for the Standing Offer will be referred to throughout this RSO as “Standing Offer Suppliers,” or “Suppliers”.

B.1.1 Service Functions

Respondents may select one or more service categories from the list below:

Service Category	Service Functions	Specific Required Information for Service Functions
People Services, Professional Development, Training & Facilitation	Human Resource Consultants	Describe the core competencies of your organization as they relate to areas such as Compensation Consulting; Organizational Design; Outplacement Services; Recruitment/Executive Search; etc.
	Accessibility and/or DEI Consultants	Describe the areas in which you provide services specific to Accessibility and/or Diversity, Equity & Inclusion topics. May include consulting, assessment, policy development, etc.

Training & Facilitation	<u>Course/Workshop Delivery</u> - Provide an overview of available training opportunities. Should include a high-level summary of learning objectives, content, format of delivery, and expected learning outcomes. May cover a range of topics for different audiences, such as capacity building for start-ups/SMEs (ie. export readiness; market expansion; scaling up; investment readiness; succession planning; etc.); professional development (ie. executive coaching; leadership development; 360 feedback; diversity & inclusion; etc.) <u>Curriculum Development</u> - Provide an overview of capability to develop new custom course content. <u>Facilitation</u> - Describe your services or core focus areas related to facilitation (i.e. guided facilitation for working groups/staff meetings/other; certified facilitator for third-party training such as FITTSkills or other.
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FDI Lead Generation, B2B Matchmaking, In-Market Support & Business Advisory Services	FDI Lead Generation	Describe your core focus areas and approach/methodology used to conduct FDI lead generation campaigns. Specify any expertise for a particular industry, sector, or sub-sector; or geographical market segment.
	B2B Matchmaking	Describe your approach/methodology for conducting business-to-business matchmaking campaigns for groups of 5 or more businesses. Identify your core competencies in terms of sectors/industries or geographical market segments in which you have demonstrated market/business connections. Sectors where these services are most often required include Ocean Tech, Seafood, Food & Beverage, ICT, Aerospace & Defence, Clean Tech, and Life Sciences.

In-Market Trade Show/Event Support	Describe your ability to provide in-market support services for businesses participating in trade shows/events. Typical requirements include in-market staff to support businesses with logistics/customs for trade show samples; support businesses in-market at a trade show booth, manage a booth at a trade show, understanding high-level value propositions and supporting lead generation/promotion activities at a trade show/event, etc. Identify your core competencies in terms of sectors/industries or geographical market segments in which you have demonstrated market/business connections or experience.
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Business Advisory Services	Provide an overview of your capacity to provide 1:1 advisory services to businesses primarily in the start-up community. Include a description of your subject matter expertise, and any particular focus on sectors/industries including software, agriculture tech, clean tech, ocean tech, or health tech.
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Marketing and Communication Services

Marketing	Provide an overview of your core service offering for marketing services in areas such as marketing strategy/planning; creative services; digital marketing; media planning/buying; etc.
Visual Arts	Provide an overview of your core service offering related to Video Production, Photography, 360 Video, Drone Photography, etc. Should include links to portfolio of sample projects, with demonstrated experience highlighting NS companies/sectors/industries/regions/etc.
Website Development / Design	Respondents in this category must have Drupal experience. Provide examples of completed projects with screenshots/links to finished work.
Printing	Describe your core focus areas related to design, productions, and printing services.
Promotional Products	Describe the products available and how they are customizable with logos/branding and any minimum purchase requirements. Supplier must be able to demonstrate how sustainability is addressed.
Communication Plans	Describe your experience in developing comprehensive communication plans that incorporate key messaging, target audience, channels for communication, change management, etc.

	Freelance Writing	Describe your core focus areas with demonstrated experience in areas such as business writing, digital writing, editorial/promotional writing, and/or speech writing.
	Event Management Services	Describe your experience with project managing events, in-person, virtual, and/or hybrid, describing your key areas of responsibility. Must have demonstrated experience with business/conference-themed events for 100-200+ attendees.
Information Technology Goods & Services	Desktop Hardware Sales & Support	Describe goods offered related to computer equipment, peripherals, and suppliers for end users for both Microsoft and Apple products.
	Network, Server & IT Security Consultation Services	Describe your services related to network and server planning, installation, monitoring and support for on-premises, hybrid, and cloud infrastructure, and cybersecurity assessment.
	Server, Firewall, and Network Hardware Sales & Support	Describe goods offered related to server, firewall and network hardware, wireless APs and controllers, and supplies for on-premises and cloud infrastructure.
	Software / Application Licensing Consultation & Development	Describe your services related to new and existing on-premises and cloud-based platforms. Could include Salesforce, Drupal, Microsoft, iOS, etc.
	Audio / Video Equipment Sales, Rentals & Support Services	Describe goods and services for rental/sales/support that could include equipment such as projectors and screens, TVs, speakers and microphones, event setup and support.
	Cabling Installation	Describe your services related to installation and testing of network cabling, panels, outlets.
	Privacy Impact Assessments & Risk Governance Consultation	Describe your services related to preparing assessments, reports, and / or related policies.
Research & Analysis	Economic Research & Impact Analysis	Describe your services in research and analysis specifically related to economic development. Typical requirements may include more generalized research, or specific impact analysis relating to a particular program/initiative.

	Market Research	Describe your services related to the collection of qualitative and quantitative data in large-scale aggregate format. Typical requirements may include focus groups, online or telephone questionnaires, interviews, etc.
	Assessments & Feasibility Studies	Describe your services related to the ability to provide technology assessments, feasibility studies, and/or business case/company due diligence assessments. A few examples of projects that could be procured in this area include, but are not limited to: Technology identification and feasibility assessments to narrow the focus of investment attraction and cluster building strategies; Value chain deep dives to assess potential technology-market fits with an economic development lens; In-depth due diligence research into a client, their business case, and/or the technical feasibility of their innovative products; etc.
	Sector Research & Analysis	Describe your core focus areas related to specialized/niche sectors/sub-sectors to provide in-depth research and analysis.
Professional Engineering, General Contracting, Facilities & Security Services	Professional Engineering & Design Services	Describe your core focus areas for licensed engineering and design services. Services in this category are most often required for civil, marine, and electrical engineering.
	Environmental Consulting	Describe your core focus areas related to professional services to provide analysis and insight on environmental concerns for public and private industries; property acquisition, development and construction; public works and infrastructure; health compliance and safety regulations; sustainability and energy efficiency, etc.
	General Contracting	Describe your core focus areas related to general contracting in areas such as day-to-day oversight of construction sites, management of vendors and trades, and communication of information to all involved parties throughout the course of a building project; or other.
	Excavation Contracting	Describe your services related to excavation work, identifying types of clients/projects worked for, and any areas of specialty, such as experience/ability to perform work on or near environmentally protected areas, etc.

	Land Surveyors / Land Use Planning Consultants	Describe your services related to providing land surveys and consulting services to create plans for land development and usage.
	Landscaping / Snow Removal	Describe your services related to landscaping/snow removal work, identifying types of clients/projects.
	Security for Marine Facilities	Describe your services related to professional security services for marine facilities. Skills/Expertise must demonstrate security guards are trained pursuant to Transport Canada Marine Security Regulations, and available resources include Marine Facility Security Officers (MFSO) and Persons with Security Responsibilities (PWSR).
	Signage	Describe your service offering and types of clients/projects for development of signs in physical and/or digital formats.
Legal & Other Professional Services	Actuarial Assessments	Describe your services related to providing actuarial assessments.
	Insolvency Practitioners / Restructuring Consultants	Describe your services related to providing insolvency, restructuring, and receivership services.
	Mediation & Dispute Resolution	Describe your services related to providing mediation and dispute resolution.
	Legal Services	Describe your core areas of focus for providing professional legal services. Areas most often required in this category are Corporate and Commercial, Employment and Labour, Real Estate, and IP.
	Real Estate Appraisals / Brokerage Services	Describe your services related to providing professional services for real estate appraisals and/or brokerage services.
	Translation / Interpretation	Identify the languages for which you can provide professional translation and/or interpretation services for business. May include written translation of documents, transcription, or simultaneous interpretation at events.

B.1.2 Onboarding

The RSO will open for continuous onboarding of new Respondents beginning November 1, 2024, and ending on February 15, 2027, approximately six months prior to the end of the Standing Offer term. New Respondents can typically expect to receive evaluation results within two to three weeks after receipt of their response.

The call for continuous onboarding will be issued through Bonfire, with notices posted on the Invest Nova Scotia Website and the Nova Scotia Provincial Procurement Web Portal.

The same terms and conditions, qualifications, requirements, and evaluation process set out in the RSO document will apply to any additional Respondents.

For further clarification, Respondents who are accepted to the Standing Offer through the initial call of this RSO will NOT need to reapply through the continuous onboarding process.

B.1.2 Call-up Process

Invest Nova Scotia uses the following thresholds and process for issuing SOWs to selected Standing Offer Suppliers:

- Goods/Services less than \$2,500 – Standing Offer process not applicable, users may select a supplier of choice.
- Goods/Services valued at \$2,500 to less than \$10,000 – users may select a Supplier of choice in a specific Standing Offer category.
- Goods valued at \$10,000 to less than \$33,400 – users may request quotes to a SOW from three or more Suppliers in a specific Standing Offer category.
- Services valued at \$10,000 to less than \$133,800 – users may request quotes to a SOW from three or more Suppliers in a specific Standing Offer category.
- Goods valued at \$33,400 or more – public tender process required.
- Services valued at \$133,800 or more – public tender process required.

Invest Nova Scotia reserves the right to issue subsequent public tender calls at any threshold to address its requirements.

SOWs will be issued on an as required basis for a term of August 1, 2024, to July 31, 2027. This Standing Offer will not guarantee a minimum volume of work to any successful RSO Respondent.

Please note, threshold amounts listed here are in use as of the issue date for this RSO but may be adjusted throughout the full Standing Offer term. Refer to the Invest Nova Scotia Procurement Policy, available on our website at www.investnovascotia.ca, for full up-to-date information on process and current thresholds.

B.1.3 Response Format

Respondents should structure their response in a proposal format using their own branded templates if applicable, with the following required information clearly identified:

1. Executive Summary (optional)
2. Corporate Profile
3. Goods/Services Offered
4. Skill and Expertise
5. Demonstrated Experience

Details on the information that should be included in each criterion should be carefully reviewed in the Rated Criteria section below. Each criterion will be evaluated using a Pass/Fail weighting, and Respondents must pass all criteria to be accepted into a category for the Standing Offer. (As a rough estimate, average response length in prior RSO calls has been between 10-40 pages, depending on the goods/services selected.)

An executive summary is not required or rated but may be helpful for evaluators if you are applying in multiple categories or identifying experience across several service functions within a category. If suitable for your proposal, it should be no more than one page, and include a few details that address the service functions for which your organization is best suited within the category, and any unique, niche, or focus areas for your company. Some examples may include, but are not limited to, B2B Matchmaking with deep connections in a particular sector/industry, or experience across all sectors, but a deep network within a specific geography; full-service marketing firm, or boutique smaller firm specializing in graphic design; training & facilitation for a particular topic, particular audience, third-party training certifications such as FITTSkills trainer; translation/interpretation for what languages; etc.

B.2 MATERIAL DISCLOSURES

B.2.1 Selection

Invest Nova Scotia reserves the right to not select a Respondent for the Standing Offer who does not demonstrate a goods/service offering that is a fit for the typical procurement requirements of Invest Nova Scotia in a particular category. Results of non-selection will be shared with the Respondent, and the Respondent may have an opportunity to reapply during the continuous onboarding process.

B.2.3 Performance

Invest Nova Scotia reserves the right in its sole discretion to remove a Respondent from the Standing Offer.

B.3 MANDATORY TECHNICAL REQUIREMENTS

Credentials, specific to a designation, must be clearly identified in the skills/expertise section of your response for selected service functions.

B.4 RATED CRITERIA

B.4.1 Corporate Profile [Pass/Fail]

Respondents must provide a corporate profile, no more than one-two pages in length, that provides an overview of their organization. It should address the year established, head office location (and any regional office locations), number of employees, types of clients or markets served, etc.

B.4.2 Goods/Services Offered [Pass/Fail]

Respondents must provide a detailed overview of their goods/services offering for each of the selected service functions within a category to demonstrate suitability. Supporting details on core focus areas related to sector/market expertise, training/workshops offered, specialization in particular areas for professional engineering or legal services, etc. should be addressed through this section.

B.4.3 Skills/Expertise [Pass/Fail]

Respondents must provide detailed qualifications in the form of biographies or curriculum vitae for key personnel that will provide the goods/services for Invest Nova Scotia for future potential SOWs. Should include details on education/work experience, with any relevant technical certifications/designations identified, as well as any other details to demonstrate relevant skills/expertise for related service functions.

B.4.4 Demonstrated Experience [Pass/Fail]

Respondents must provide a description of two-three previously completed engagements within the past five (5) years that clearly demonstrate the Respondent's experience and capability across selected service functions for a category. Examples should include an overview of the engagement (what the purpose/objective was), the approach, methodology and tools used to complete the engagement, identification of any measurable outcomes (how your involvement in the project made a difference, which could be demonstrated through testimonials, re-engagement by clients, measurable metrics/KPIs, etc.), and samples of completed work, if applicable. Each example should include reference contact details. Invest Nova Scotia may contact references prior to finalizing selection of Respondents for inclusion on the Standing Offer.

APPENDIX C – SAMPLE FORM OF AGREEMENT

Should a Respondent be successful in a future invitational competitive process, the terms of the Agreement that will be used are provided below (provided only as a sample here).

CONSULTANT SERVICE AGREEMENT dated the ____ day of _____, 20__.

BETWEEN:

INVEST NOVA SCOTIA,

a body corporate, continued under the *Invest Nova Scotia Act* (Nova Scotia)

(hereinafter called "Invest Nova Scotia")

-and-

COMPANY NAME

(hereinafter called "Consultant")

WHEREAS Invest Nova Scotia requires the services, advice and assistance of a consultant to provide XXX, as set out and described in Schedule "A" annexed (the "Consultant Services").

AND WHEREAS Invest Nova Scotia wishes to retain the services of the Consultant to provide the Consultant Services, and the Consultant is willing to be so retained, subject to Terms and Conditions contained in this Consultant Service Agreement ("CSA") and the Standard Terms and Conditions attached as Appendix "A".

1. CONSULTANT SERVICES

- 1.1 Subject to section 2, the Consultant shall provide the Consultant Services to Invest Nova Scotia with respect to matters attached to this agreement as Schedule "A", or as otherwise agreed to by the Parties in writing. The Term of the Agreement shall be from XXX, to XXX, unless otherwise extended by written agreement of the parties.
- 1.2 With respect to matters identified in Schedule "A" and any others agreed to in writing by the Parties, Invest Nova Scotia may require the Consultant to prepare a detailed work plan and/or budget for each stage or component of the work when known with sufficient clarity to reasonably permit this work to be done. The work plan and budget shall be submitted to Invest Nova Scotia for prior written approval and instructions prior to any work commencing.
- 1.3 Unless Invest Nova Scotia otherwise informs the Consultant in writing, the contact person ("Retainer Administrator") for Invest Nova Scotia is XXX.

2. CONTRACT DOCUMENTS

- 2.1 The following documents are incorporated by reference and form part of this Agreement: Appendix "A" (Standard Terms and Conditions), Appendix "B" (Personal Information Protection Terms and Conditions) and Schedule "A" (Consultant Services).
- 2.2 In the event of conflict or inconsistency the provisions set out herein and in Appendix "A" and Appendix "B" take priority over the annexed as Schedule "A" or any portion thereof, and, except as may be provided therein, in any additional schedules added by the Parties subsequent to execution of this Agreement.

3. PRICE AND PAYMENT

- 3.1 Work performed by the Consultant will be billed to Invest Nova Scotia by providing accounts in such format as may be required by Invest Nova Scotia, on a monthly basis or as determined by Invest Nova Scotia, and in accord with the services Proposal. Invoiced amounts in respect of the different

phases of the Consultant Services shall not exceed those amounts set out in Schedule "A" annexed, if applicable.

3.2 Invest Nova Scotia shall pay HST/GST on applicable items, and the Consultant agrees to remit in accordance with the laws of Canada.

3.3 The total price and payment under this Agreement, excluding HST/GST, shall not exceed \$0.00.

4. NOTICES

4.1 Notices shall be provided in accordance with Appendix "A" to the following persons:

To Invest Nova Scotia as follows:

INVEST NOVA SCOTIA

Attention: XXX

1800 Argyle Street, Suite 701

Halifax, Nova Scotia, B3J 3N8, Canada

E-mail: XXX@nsbi.ca

To the Consultant as follows:

COMPANY NAME

Attention:

Address

E-mail:

5. APPLICATION OF STANDARD TERMS AND CONDITIONS

5.1 This Agreement is subject to the Standard Terms and Conditions attached as Appendix "A" to this Consultant Service Agreement and is also subject to the Personal Information Protection Terms and Conditions attached as Appendix "B" to this Consultant Services Agreement.

IN WITNESS WHEREOF, Invest Nova Scotia, through its duly authorized representatives, and the Consultant have caused this Agreement to be executed as of the day and year first above written.

EXECUTED

in the presence of:

INVEST NOVA SCOTIA

Per:

Witness Name:

Name:

Title:

COMPANY NAME

Per:

Witness Name:

Name:

Title:

Per:

Witness Name:

Name:

Title:

Appendix "A"

Consultant Services

Standard Terms & Conditions

1. **WHOLE AGREEMENT:** These Standard Terms and Conditions, together with the Consultant Service Agreement ("CSA") and schedules, shall constitute the whole agreement ("Agreement") between the Parties and no representation or statement not expressly contained herein shall be binding upon either Party.

2. TERM AND TERMINATION

Term of this Agreement shall be as defined in subsection 1.1 of the CSA.

Notwithstanding the preceding paragraph, this Agreement may be terminated by Invest Nova Scotia upon giving at least thirty (30) days notice thereof in writing to the Consultant.

Notwithstanding the two preceding paragraphs, this Agreement may be terminated by Invest Nova Scotia without further liability, damage or cost, if, in the opinion of Invest Nova Scotia, the Consultant has breached or defaulted or failed to comply with any of the terms of conditions of this Agreement and has failed to remedy the same after being given five days notice in writing to remedy the breach, default or failure, or if the Consultant commits any act of bankruptcy.

Completion by the Consultant of the services outlined in subsection 1.1 of the CSA or termination of the Agreement by Invest Nova Scotia in accordance with section 2, of the Appendix "A" shall in no way relieve or be deemed to relieve the Consultant from any ongoing duties, obligations or liabilities which may arise from this Agreement. Covenants, warranties, representations and agreements contained herein shall survive any termination as may be necessary to carry out the intent of this Agreement.

In the event of termination, in accordance with this section Invest Nova Scotia shall pay the Consultant an amount calculated under the terms of payment for all work performed and accepted together with such further amount as will in the opinion of Invest Nova Scotia compensate the Consultant for reasonable expenses continuing after the date of termination, less any amounts that have been previously paid to the Consultant under section 3 of the CSA.

3. ASSIGNMENT AND SUBCONTRACTING

The Consultant shall not assign or subcontract this Agreement or any part thereof without the prior written consent of Invest Nova Scotia.

The Consultant shall be liable to Invest Nova Scotia for any obligation to Invest Nova Scotia not met or any right of Invest Nova Scotia breached by any agent, consultant or subcontractor engaged by the Consultant as if that agent, consultant or subcontractor was the Consultant itself.

With respect to any agents, consultants, or subcontractors engaged by the Consultant, the Consultant shall take such steps as are necessary to ensure the rights of Invest Nova Scotia are protected, and obligations owed by the Consultant to Invest Nova Scotia are met.

Without limiting the foregoing, the Consultant shall bind by contract any agent, consultant or subcontractor which is assisting or performing work and services for the Consultant in relation to the Consultant Services to meet the obligations and preserve the rights of Invest Nova Scotia as if that agent, consultant or subcontractor were the Consultant and a party to this Agreement.

4. BOOKS AND RECORDS

The Consultant agrees to maintain proper and accurate accounts and records relating to this Agreement and the services provided.

All contracts, correspondence, copies, books, records, accounts, working papers, and other information of the Consultant relating to Invest Nova Scotia and to expenses incurred by the Consultant in performing its services under this Agreement shall be made available for inspection by Invest Nova Scotia or by its designate(s) at reasonable times and upon reasonable notice.

5. INVEST NOVA SCOTIA'S OBLIGATIONS

Weekly Meetings. Invest Nova Scotia shall use reasonable best efforts to attend meetings as contemplated in the contract documents.

Duty To Co-Operate: Invest Nova Scotia shall co-operate with and assist the Consultant by providing to the Consultant such reasonable information and access to Invest Nova Scotia's personnel and other resources as are reasonably necessary to complete the work. All such information and access will be considered the Invest Nova Scotia's deliverables.

Payment: Subject to the provisions of this Agreement, Invest Nova Scotia shall make payment to the Consultant for Consultant Services provided under this Agreement within 30 days following the date on which invoices and substantive documentation are received and approved. Payment may be withheld by Invest Nova Scotia in part or in full, or Invest Nova Scotia has a right of set-off if the Consultant Services described in Schedule "A" are not carried out in accordance with the terms of this Agreement, or if the Consultant has accounts outstanding with Invest Nova Scotia.

6. CONSULTANT'S OBLIGATIONS

The Consultant shall use reasonable best efforts to attend meetings as contemplated in the contract documents.

With respect to matters identified in Schedule "A" and any others agreed to in writing by the Parties, Invest Nova Scotia may require the Consultant to prepare a detailed work plan [and budget] for each stage or component of the work when known with sufficient clarity to reasonably permit this work to be done. The work plan [and budget] shall be submitted to Invest Nova Scotia for prior written approval and instructions prior to any work commencing.

The Consultant shall meet the deadlines for the work established under Schedule "A" or that may arise from meetings with Invest Nova Scotia as agreed to by the Consultant and Invest Nova Scotia. Delays in the Consultant meeting its deadlines are excused and shall be deemed acceptable to Invest Nova Scotia for the purposes of this Agreement only to the extent that such delay is a reasonable consequence of Invest Nova Scotia's failure to meet or provide its deliverables.

The Consultant shall have the exclusive authority to make staffing decisions with respect to use of its personnel in the completion of its work and obligations. Notwithstanding the foregoing, Invest Nova Scotia may request the removal of any personnel that it reasonably determines are not satisfactorily performing the work and services (including matters relating to inter-personal skills) and the Consultant shall use all commercially reasonable efforts to comply with any such request.

All services supplied by the Consultant shall be performed in such manner only as is usual and customary in skillful and proper supply of Consultant Services in Canada.

7. INDEPENDENT CONTRACTOR

It is understood and agreed that this Agreement is a contract for the performance of services and that the Consultant is engaged as an independent contractor and that the Consultant or its employees, agents, consultants or any subcontractor are not, nor shall be deemed to be, an employee, servant or agent of Invest Nova Scotia.

The Consultant has no authority under this Agreement to bind Invest Nova Scotia by contract or otherwise without the prior written approval of Invest Nova Scotia.

8. LIABILITY AND WARRANTY

The Consultant agrees that Invest Nova Scotia shall not be liable for any injury including death to any person or for the loss of or damage to any property that is caused in any way by the Consultant's performance of its services under this Agreement, unless the injury, loss or damage is caused by the gross negligence of an officer or employee of Invest Nova Scotia while working within the scope of his or her employment.

The Consultant agrees that it shall at all times indemnify and save harmless Invest Nova Scotia, its officers, employees and agents from and against all claims, demands, losses, costs, damages, actions, suits or other proceedings of any kind based upon injury, including death, to any person, or damage to or loss of property arising from any willful or negligent act, omission or delay on the part of the Consultant, its servants or agents in carrying out this Agreement.

9. INTELLECTUAL PROPERTY OWNERSHIP

Information and Documents: All research, reports, papers, material, audio-visual material and information forming part of or produced in the performance of this Agreement and all copyrights thereto, and all patents, trademarks and industrial designs arising therefrom, are the property of Invest Nova Scotia, and are hereby assigned by the Consultant to Invest Nova Scotia, provided that the intellectual property rights in pre-existing materials and information belonging to the Consultant shall remain with or vest in the Consultant. The Consultant shall not divulge, release or publish any such research, reports, papers, material, audio-visual material or information, or any part thereof, without first having obtained written permission from Invest Nova Scotia.

Publication: Invest Nova Scotia reserves the right to publish or release in whole or in part, to publish an amended version and not to publish or release at all, or to use or not use as Invest Nova Scotia may deem fit, any research, reports, material, audio-visual materials, or information produced in the performance of this Agreement.

Trade Marks: The Consultant may only use the Invest Nova Scotia trade marks with the prior written consent of Invest Nova Scotia, and in such case the use shall be limited for the purposes of performing its obligations under this Agreement and for no other purpose.

Invest Nova Scotia Properties And Work Product: Invest Nova Scotia will at all times be and remain the sole and exclusive owner of the work created under the Agreement, and the Consultant hereby assigns and conveys its entire right, title and interest to any work product created under this Agreement, and all copyright and other proprietary rights therein, without further consideration, free from any claim or lien or retention of rights.

Indemnity: If a claim or proceeding is brought against Invest Nova Scotia for an infringement of a proprietary right resulting from the Consultant Services of a third party enforceable in the United States or Canada, then the Consultant shall indemnify and defend such claim or proceeding at its expense and pay any costs or damages (including solicitor fees on a solicitor-client basis) that may be incurred or finally awarded against the Invest Nova Scotia.

10. CONFIDENTIALITY

Consultant and its employees and agents shall treat as confidential, during and after the term of this Agreement, any information or materials of a confidential nature concerning the affairs of Invest Nova Scotia or any third party which the Consultant or any of its employees or agents acquire knowledge of or that comes into its or their possession by reason of its or their business with Invest Nova Scotia or any third parties under this Agreement.

The Consultant and its employees and agents shall not make public or disclose, either directly or indirectly, any such confidential information or materials to anyone, including a person, Consultant or corporation, without first obtaining the prior written permission of Invest Nova Scotia.

The Consultant will take commercially reasonable steps to ensure that it, its employees and its agents comply with this provision. Without limiting the foregoing, the Consultant shall provide a certificate to Invest Nova Scotia stating that all employees and agents have acknowledged and agreed to be bound by the terms of this provision, on request. A new certificate will be given for new employees and agents hired after the date of any prior certificates and who may be reasonably expected to acquire knowledge of confidential information or materials of Invest Nova Scotia.

The parties acknowledge and agree that all materials and information provided to Invest Nova Scotia shall be kept confidential, subject to the provisions of the Nova Scotia *Freedom of Information and Protection of Privacy Act* and the laws of Nova Scotia and Canada generally

The Consultant hereby acknowledges and agrees that it is a "service provider" as defined in the Nova Scotia Personal Information International Disclosure Protection Act (PIIDPA) and is legally bound by the obligations imposed on it as a service provider under PIIDPA, including the obligation,

notwithstanding the laws or the order of any court outside Canada, to immediately notify the Nova Scotia Minister of Justice in writing of the receipt of a known or suspected "foreign demand for disclosure" or that a suspected "unauthorized disclosure of personal information" has occurred in response to a "foreign demand for disclosure" as each of those terms is defined under PIIDPA. Delivery of such notice shall be made by rush courier to both Invest Nova Scotia and to the:

Attorney General of Nova Scotia
1690 Hollis Street, PO. Box 7
Halifax, Nova Scotia B3J 2L6

11. INFORMATION

The Consultant warrants that all information submitted to Invest Nova Scotia respecting this Agreement is true and accurate. Any misrepresentation or omission by the Consultant in this regard shall entitle Invest Nova Scotia to terminate this Agreement forthwith and shall entitle Invest Nova Scotia to exercise any of its rights under this Agreement or as may be available at law.

12. GENERAL

CHOICE OF LAW AND FORUM: This Agreement shall be construed and interpreted in accordance with the laws of the Province of Nova Scotia, and shall be treated in all respects as a Nova Scotia contract.

COMPLIANCE WITH LAWS: The Consultant shall comply with all laws, ordinances, rules and regulations applicable to the Consultant Services.

SUCCESSORS: This Agreement shall enure to the benefit of each Party, its successors and assigns, provided however that the Consultant may not assign this Agreement except with the prior written consent of Invest Nova Scotia, which consent shall be at Invest Nova Scotia's sole discretion.

HEADINGS: The headings used in this Agreement are inserted for reference purposes only, and shall not affect the meaning or construction of any provision.

AMENDMENT: This Agreement may only be altered by means of a written memorandum signed by both Parties. The said memorandum shall be supplemental to and shall be deemed to form part of this Agreement. This Agreement shall not be changed, modified or discharged orally.

CONSENT TO BREACH AND WAIVER: No term or provision of this Agreement shall be deemed waived and no breach excused, unless the waiver or consent to the breach is in writing, signed by the Party making the waiver or giving the consent. Any consent by a Party or waiver of a breach by the other, whether expressed or implied, shall not constitute consent to, waiver of, or excuse for any different or subsequent breach or continuation of the same breach, unless expressly stated.

SEVERABILITY: If any term or provision of this Agreement is found to be unenforceable or illegal, the rest of the Agreement remains in full force and effect, except that the offending term or provision is deemed to be removed from the Agreement.

NOTICES: Except as otherwise stated in the Agreement, all notices to or upon the respective parties to this Agreement shall be in writing, and shall be deemed to have been fully given immediately when delivered by hand/e-mail or two business days after posting by prepaid registered post to the party to which such notice is required to be given under this Agreement, as defined in Section 4.1 of the CSA. Either party may by written notice designate a new address for notices given hereunder.

Nothing herein shall preclude the delivery of notices pursuant hereto by means other than mailing, and if mailed delivery shall be deemed to be made five (5) business days following the date of mailing.

FISCAL PERIOD: In the event this contract extends beyond the end of the fiscal period of Invest Nova Scotia then in such event any obligation of Invest Nova Scotia shall be subject to appropriation in the subsequent or later fiscal periods, as the case may be.

TIME: Time shall be of the essence in this Agreement

Appendix "B"
Consultant Services
Personal Information Protection Terms & Conditions

1. DEFINITIONS:

In Appendix B, "personal Information" has the same meaning as in the *Freedom of Information and Protection of Privacy Act* (Nova Scotia), S.N.S. 1993, c.5,.

2. COLLECTION AND USE OF PERSONAL INFORMATION

The Consultant acknowledges and agrees that in providing the Consultant Services to Invest Nova Scotia under this Agreement it shall only collect and use such personal information that is necessary to fulfill its obligations under this Agreement.

3. PROTECTION OF PERSONAL INFORMATION:

The Consultant acknowledges and agrees that in providing the Consultant Services to Invest Nova Scotia under this Agreement it shall at all times make reasonable security arrangements to protect personal information it collects or uses by or on behalf of Invest Nova Scotia against such risks as unauthorized access, collection, use, disclosure or disposal.

4. ACCESS, STORAGE OF PERSONAL INFORMATION OUTSIDE CANADA:

Invest Nova Scotia authorizes the Consultant, in providing the Consultant Services to Invest Nova Scotia under this Agreement, to store personal information outside Canada and to access personal information from outside Canada.

5. TEMPORARY TRANSPORT OF PERSONAL INFORMATION OUTSIDE CANADA:

Invest Nova Scotia authorizes the Consultant, in providing the Consultant Services to Invest Nova Scotia under this Agreement, to temporarily transport personal information outside Canada in a computer, a cell phone or another mobile electronic device, where there is a reasonable expectation the personal information is necessary for the Consultant's performance of duties under this Agreement while travelling outside Canada.

6. NOTICE:

The Consultant shall promptly notify Invest Nova Scotia of any known or suspected unauthorized access, collection, use, disclosure or disposal of personal information the Consultant collects and uses on behalf of Invest Nova Scotia.

Schedule “A”

1. Consultant’s Proposal, Dated XXX.

SAMPLE